
Notice to Correct NTC-KFI2-001 — Failure to Proceed with Due Diligence

Kestrel Flyover Interchange Project — Package KFI-2

Document Reference:	NTC-KFI2-001
Date:	26-Apr-2021
Contract No.:	KMDA/KFI2/CW/2019-04
From:	Engineer, Ashgrove Infrastructure Consultants
To:	Rennick Builders Ltd.
CC:	Kaldera Metropolitan Development Authority

Subject: Notice to Correct — Sub-Clause 15.1

Pursuant to Sub-Clause 15.1, and further to Progress Assessment EPA-KFI2-001 (08-Mar-2021) and Warning Notice EWN-KFI2-001 (19-Mar-2021), we give notice that the Contractor has failed to proceed with the Works with due diligence, having regard to the then-current programme, in that overall progress stood at 41 per cent against a planned 88 per cent as at 08-Mar-2021, a shortfall sustained and widening over the two most recent reporting periods, and no corrective action plan has been received in response to EWN-KFI2-001.

In accordance with Particular Conditions Part C.1 and Contract Data Section 9, the Contractor is required, within 42 days of this notice (by 07-Jun-2021), to:

- (a) mobilise labour and plant to the resource levels shown in the Contractor's own accepted programme, across all principal elements of the Works, not only those affected by the Ramp C utility relocation;
- (b) submit, within 21 days of this notice, a recovery programme demonstrating an achievable path to completion, and commence executing it; and
- (c) achieve not less than 55 per cent overall progress, by contract value, by 07-Jun-2021.

Failure to remedy each of the above within the period stated may result in termination under Sub-Clause 15.2.

Signed: Engineer's Representative
Ashgrove Infrastructure Consultants